

IN THE CIRCUIT COURT OF BOONE COUNTY, MISSOURI

In Regard to:

**Amber R McIntosh and
Shingai R Samudzi.**

**AMBER R MCINTOSH,
*Petitioner,***

v.

**SHINGAI R SAMUDZI,
*Respondent.***

CASE NO.: 25BA-FC01732

PETITIONER'S FIRST INTERROGATORIES PROPOUNDED TO RESPONDENT

COMES NOW Petitioner Amber R McIntosh, and propounds the following Interrogatories to be answered by Respondent, Shingai R Samudzi, in the manner provided by Supreme Court Rule 57.01 and Local Rule 68.7.1.

THESE INTERROGATORIES ARE OF A CONTINUING NATURE REQUIRING YOU TO SERVE TIMELY SUPPLEMENTAL ANSWERS SETTING FORTH ANY INFORMATION WITHIN THE SCOPE OF THESE INTERROGATORIES WHICH MAY BE ACQUIRED BY YOU, YOUR ATTORNEY, INVESTIGATORS, AGENTS, OR OTHERS EMPLOYED BY OR ACTING IN YOUR BEHALF, FOLLOWING THE ORIGINAL ANSWERS.

INSTRUCTIONS

Type your answers to the following Interrogatories in the space provided on this form where possible. If the space provided is not sufficient to completely answer each Interrogatory, type your answer on a separate sheet of paper and attach same as an appendix to said Interrogatory and noting on the appendix reference to the Interrogatory being answered.

1. Please state your full name, date of your birth, the address of your present place of residence, and your Social Security Number.

ANSWER: Shingai Samudzi; 10/22/1986, 2890 Hancock Hills Rd Rocheport, MO 65279, 198662831

2. State the name, address, occupation, place of employment, qualifications to give an opinion, telephone number and fax number of each person whom you expect to call as an expert witness at trial and for each such person, identify the general area or topic of his or her expected testimony and the expert's hourly deposition fee.

ANSWER: None at this time

3. Has the opposing party been a good parent to the minor children? If not, please state in detail any and all complaints you have regarding the opposing party as a parent.

ANSWER: See the allegations listed in Respondent's Sworn Affidavit filed November 14, 2025 and the Respondent's motion for Sole Legal Custody filed to the court on this case docket

4. Is there anything about the other parent that renders her unfit to have joint physical custody of or reasonable parenting time with the minor children? If so, describe with specificity this unfitness.

ANSWER: Respondent is not seeking to modify physical custody. Respondent's Motion for Sole Legal Custody addresses the specific concerns regarding Petitioner's capacity for joint legal decision-making, which are set forth in detail in Respondent's Sworn Affidavit filed November 14, 2025.

5. In the past twelve months, have the children been examined, treated, counseled or interviewed by any health care professional in your custody? If the answer is yes, identify as to each child, the name of the health care professional, the address of the health care professional, the reason for the examination, treatment, counseling or interview, and the diagnosis resulting from such examination, treatment, counseling, or interview.

ANSWER: Both children have been semi-regularly seeing child psychology specialist Dr. Kristen Johnson with University of Missouri Health System per Respondent's request from August 2025 for the purpose of ensuring a healthy adjustment to parental separation. No formal diagnoses have been presented for either child although Dr. Johnson did note that the younger child expressed higher levels of anxiety and violence while with her mother on my visit with her in November 2025.

6. Identify each person who cares for or watches your minor children during your parenting time periods, giving the names, addresses and telephone numbers of such persons. Please state the hours per month the children is left with another person or babysitter while you are at work or away on other endeavors.

ANSWER: The children are at school during work hours, and are with Respondent's parents Fungai Chanetsa and Cleopas Samudzi - same address as Respondent - when respondent travels for work which occurs typically once per quarter for 2 weeks at a time

7. Do you claim misconduct on the part of the opposing party? If yes, please state in detail each and every allegation of marital misconduct you are claiming.

ANSWER: See the allegations listed in Respondent's Sworn Affidavit filed November 14, 2025 and the Respondent's motion for Sole Legal Custody filed to the court on this case docket

8. Since the date of separation, please indicate whether you have removed any cash, certificate of deposit, or other marital or non-marital property from the marital residence or otherwise changed the location of such property and for each piece of property please state:

- a. Identify the property;
- b. Indicate whether it is marital or non-marital;
- c. Estimate its value;
- d. Identify its present location.

ANSWER: Respondent incorporates by reference his Form 14 Financial Statement filed December 23, 2025, which accounts for all property in Respondent's possession.

9. Have you or has anyone on your behalf had your spouse under surveillance or made any observations concerning opposing party's activities during any period in the last five years? If so, state:

- a. Each date such surveillance was maintained;
- b. The name, address and job title of each investigator or the person who maintained the surveillance;
- c. Each location at which surveillance was maintained;
- d. The activities that your spouse was engaged in during any such period of surveillance;

- e. The name and address of each person present when such surveillance was maintained;
- f. Whether any written report of such surveillance was made.

ANSWER: **No**

10. State whether you have ever been convicted of or pled guilty to a misdemeanor or a felony, including driving while intoxicated, and excluding traffic violations. If so, for each such pleading or conviction, please state:

- a. What you were charged with;
- b. The date in which such plea or a finding of guilt occurred;
- c. The fine or sentence imposed; and,
- d. The court in which said charge was filed and the cause number.

ANSWER: **I received a Probation Before Judgement in Montgomery County, Maryland in 2009 for driving while intoxicated when I was 22 years old**

11. If you were self-employed or a member of a partnership during any of the three (3) preceding years, state the nature of the business and your share of the gross income (after business expenses) received in each said year.

ANSWER: **Asoba Corporation is a renewable energy asset management company operating in South Africa and Zimbabwe. The company is not in a financial position to distribute profits as dividends.**

12. State whether you are, or during the past five (5) years you were engaged in any business enterprise as a director, officer or shareholder of a closely held corporation. If so, please state the following:

- a. Identify (name and address) the business;
- b. Identify (name and address) each director and officer;
- c. The date on which you acquired your interest, or your participation commenced;
- d. Your capital contribution(s) to the business and the date(s) on which said contribution(s) were made;
- e. The date on which your interest, participation or relationship terminated;
- f. The number of shares of stock you own, type of stock and the number of shares outstanding;
- g. Your proportionate share in the ownership and/or profits of the business;
- h. Identify (name and address) the custodian of the financial records of the business and the business ventures accountants.

ANSWER:

Asoba Corporation (and South African subsidiary OpCo Asoba Pvt Ltd)

Other officers in the business are non-US nationals, based in South Africa

Asoba Corporation was incorporated in Delaware in April 2023 with capital contributions from my 401K of roughly \$30K

Given dilution from raising equity from Venture Capital, my percentage of total outstanding ownership share is 21% out of 10M current outstanding shares, classified as common stock.

The custodian of financial records is a Philippines national based in the Philippines.

Petitioner conceded Asoba Corporation and its related entities to Respondent in writing on September 18, 2025 and again on February 2, 2026, the latter through counsel of record. Respondent objects to further discovery into the internal financials of an uncontested asset as disproportionate under Rule 56.01(b)(1).

13. If during the past three (3) years, you have had any savings, checking, or commercial accounts in your name, solely or jointly with others, with a bank or financial institution, please state:
- a. The name and address of the bank or financial institution;
 - b. The type of account;
 - c. The names on the account;
 - d. The person(s) authorized to draw on the account;
 - e. The date the account was opened;
 - f. The date the account was closed;
 - g. The account number;
 - h. The amount of the present balance, if any, or the amount of the last balance before the account was closed.

ANSWER: Yes, I previously had Joint Savings and Checking Accounts with Capital One that Petitioner closed at midnight, unilaterally in November 2025, which triggered my emergency TRO filing. Petitioner was not authorized to close the Joint Checking Account and did not consult or inform Respondent prior to doing so. Because she closed the accounts, I do not have the ability to access to the full account history to provide you with accurate opening date. Petitioner can provide you the details of exactly how much was removed and final balance.

14. For each financial statement you prepared or had prepared on your behalf during the last three (3) years, state:

- a. The name and address of each person or organization to whom you gave such statement;
- b. The date of the financial statement;
- c. The name of the person who prepared the financial statement.

ANSWER: **I prepared my own financial statements**

15. If you have transferred any real or personal property since within the last twenty-four (24) months, for each such item state:

- a. The legal description of the property;
- b. The value of your equity interest in the property;
- c. The date you transferred the property;
- d. The name and address of the person to whom you transferred said property;
- e. The net proceeds received for said property.

ANSWER: **No**

16. If during the past three (3) years, there have been any bank accounts on which your name did not appear, in which you deposited or drew money, or are authorized to withdraw money, please state with respect to each such account:

- a. The name and address of the bank or financial institution;
- b. Each name under which the account is listed;
- c. The account number;
- d. The approximate date or dates and amounts of each deposit or withdrawal made by you.

ANSWER: **I deposited roughly \$14K into Petitioner's Venmo account between May and July of 2024.**

17. If there are, or were during the last three (3) year period, any safe-deposit boxes, vaults, safes, or other places of deposits and safe-keeping in which you deposited or kept any money, documents, or other items of personal property, please state with respect to each such place of deposit:

- a. The name and address of the depository or institution;
- b. The number or other means of identification;
- c. The name and address of each person authorized to enter the deposit;
- d. The date the deposit was commenced;
- e. The date the deposit was terminated;
- f. Identify the present contents of each said place of deposit.

ANSWER: **No**

18. List all debts and obligations, if any, that you presently, owe, and in connection therewith, state the following for each:

- a. Identify the person or entity to whom said obligation is owed (obligee).
- b. Identify each obligor;
- c. The consideration received in exchange for the debt or obligation;
- d. Identify any collateral or other security for each debt or obligation;
- e. The original amount of the debt or obligation;
- f. The present balance owing and the terms of payment.

ANSWER: **I owe ~\$21K remaining from a \$40K car loan, for which I am sole obliger. Petitioner and Respondent are co-obligers for the mortgage loan on a rental property in Newton, Kansas - the same property Petitioner seized unilateral control in collusion with Union State Bank across November and December 2025, in open violation of the court's TRO. As of today, due to her movement of accounts and collusion with the bank, I have minimal access to loan details, and zero access or transparency any other financial details related to insurance or tax payments due to non-disclosure from Petitioner.**

19. Identify, describe and state the value of each item of property now held by you and/or your spouse that was:

- a. Acquired by you prior to the marriage;
- b. Acquired by you as a gift, bequest, devise or descent; or
- c. Acquired in exchange for property described in subparagraphs a and b above; or
- d. Subject to a valid agreement between you and your spouse; or
- e. Acquired as a result of the increase in value of property acquired prior to the marriage.

ANSWER: **The rental house mentioned in the prior question, purchased in August 2020 exclusively with my funds, valued at roughly \$70K which while nominally co-owned equally between Respondent and Petitioner, is under the exclusive and unilateral control of Petitioner.**

20. As to each item of property identified in answer to the above Interrogatory, please state the following:

- a. Describe the circumstances in which you acquired the property;
- b. Identify the person(s) or entity from whom you acquired the property;

- c. The date of acquisition;
- d. Identify each document which supports your claim that the item is separate property;
- e. Identify each person who has personal knowledge of any facts supporting your claim that the item is separate property.

ANSWER: We purchased the Newton, Kansas property because it was the only mortgage loan application in which a bank was willing to underwrite both Petitioner and myself jointly, rather than just me, due to Petitioner's credit score at the time. The title deed for the property is a public record and shows both of our names as co-owners, as does the mortgage loan show both of our names as co-obligors.

21. For each of the following questions, answer separately for each interest you have in a retirement plan, pension plan, profit sharing plan, Keough, employee stock option plan, thrift plan, 401K plan, deferred compensation plan, employee savings plan, excess benefit plan, Individual Retirement Account, and state for each plan:
- a. The correct name of the plan;
 - b. The type of plan (defined contribution, defined benefit, 401K, IRA)
 - c. The name, address and telephone number of the Plan Administrator;
 - d. The name and address of the Plan records custodian;
 - e. The date you first began to participate in the plan;
 - f. Your total years of credited service in the plan;
 - g. The percent you are vested in the plan;
 - h. The present value of your vested interest;
 - i. The dates and amounts of any withdrawals you have made from the plan;
 - j. The dates and amounts of all outstanding loans you made against the plan and the current balance of and interest rate on each loan;
 - k. The amount currently available for loan withdrawal and the conditions of same;
 - l. The plan value in which you were vested as of the day before your marriage or the closest date at which the plan was valued prior to your marriage.

ANSWER: I have none of the above. I cashed out my 401K in May 2023 to capitalize Asoba Corporation formed a month prior for roughly \$30K and to pay off Petitioner's credit card debt of roughly \$6k and to cover for her reduction in employment during that same period caused by a mental breakdown at work that resulted in her employer pushing her to part-time for a 3 month period.

22. If anyone assists you in paying your expenses, please state:
- a. Name of the person contributing to the expenses;
 - b. The relationship of the person to you;
 - c. The average monthly amount contributed.

ANSWER: **No**

23. As to each of your current employments, please state as follows:

- a. The name, address and telephone number of all your current employers;
- b. Your occupation and job title;
- c. The average number of hours you work per week;
- d. The rate of pay or salary;
- e. The annual amount and rate overtime, shift differential, bonuses, commissions, honorariums or other income in addition to your base pay and how this is calculated;
- f. Whether you expect or have been advised of any increase or decrease in income or benefits in the next twelve months and, if so, when and why;
- g. If you are reimbursed for any expenses, describe the items for which you are reimbursed and list each reimbursement by category of expense for this year to date and for each of the two (2) previous calendar years. If the expenses are reimbursed on a per diem basis, identify the daily per diem rate and separately state the annual actual expenses.

ANSWER: **This information has been provided in Respondent's financial disclosures. Respondent does not receive reimbursements and has no anticipated changes to income in the next twelve months**

24. Please describe any plans you have to move within the next five years.

ANSWER: **None**

Respectfully Submitted,

/s/ Tana Benner

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ATTORNEY FOR PETITIONER

SWORN SIGNATURE

STATE OF MISSOURI)
) ss.
COUNTY OF _____)

I, Shingai R Samudzi, certify under penalty of perjury that the above Answers to Interrogatories are complete, true, accurate, and correct to the best of my knowledge and belief. I am aware of the criminal penalties for perjury and false affidavits under RSMo 575.040, 575.050, and 575.060 which provide for imprisonment up to five years and/or fine of up to \$5,000.

Shingai R Samudzi, Respondent

STATE OF MISSOURI)
) ss.
COUNTY OF _____)

Shingai R Samudzi, of lawful age, being duly sworn on his oath, states that he is the Petitioner named above and that the facts stated in the foregoing instrument are true according to his best knowledge and belief and that he executed the same as his free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at my office in said county on this _____ day of _____, 2025.

Notary Public

My Commission Expires: